CORPORAL PUNISHMENT

It is the policy of the ____Balko_____ Board of Education to administer corporal punishment only as a last resort after other reasonable corrective measures have been used without success. However, under no circumstances shall any child in DHS custody or any student on an individualized educational program (IEP) be administered corporal punishment. ~~School district personnel are prohibited from using corporal punishment on students identified with the most significant cognitive disabilities according to criteria established by the State Department of Education unless the punishment is addressed in the student's on an individualized education program (IEP).~~

At the beginning of the school year, parents and legal guardians will be provided the opportunity to request the nonadministration of corporal punishment to their children. If a request for the nonadministration of corporal punishment has not been signed, the administration shall notify a parent or legal guardian that corporal punishment is being planned. At that time, the parent or legal guardian may request that corporal punishment not be administered.

Corporal punishment must be administered only in the presence of another professional, certificated staff member, preferably an administrator. Careful documentation of each occasion shall be made by the teacher or the administrator or both. Such documentation will identify the student and set forth the behavior necessitating the punishment; the person who administered the punishment; and the name of witnesses.

Under no circumstances shall other students or non-certificated personnel observe the administration of corporal punishment. The student shall be carefully advised of the nature of the rule infraction for which the punishment is being administered.

If a parent or legal guardian has requested that corporal punishment not be administered to the student, alternative discipline will be considered and may include suspension from school.

If an incident occurs and corporal punishment is imposed on a student with disabilities, the incident should be reported immediately to a school site administrator and documented using the statewide online IEP reporting system. A copy of the document shall be placed in the student's file and provided to the student's parent or guardian. For each incident, the student's parent or guardian shall be notified as soon as possible, and must be notified no later than the; school day following the incident or within twenty-four (24) hours of the incident, whichever is first. An IEP meeting may be needed to review or implement a Behavior Intervention Plan (BIP) for the student.

REFERENCE: **10 O.S. §7115**
70 O.S. §6-113.1
70 O.S. §6-114
70 O.S. §13-116
Accreditation Standard 210:15-=13-9

CORPORAL PUNISHMENT (REGULATIONS)

Corporal punishment will be administered in accordance with board policy and the following regulations:

1. The determination as to whether to administer corporal punishment will be made by the principal, assistant principal, or designee after reviewing the student's records to determine whether parental permission exists to administer corporal punishment.

2. In each specific incidence, corporal punishment must be administered by the principal, teacher, or principal's designee. Corporal punishment administered by the teacher must be in the presence of the principal. The principal or assistant principal may administer the corporal punishment after conferring with the teacher. If the principal administers the punishment, it is recommended that the teacher who referred the student be one of the witnesses.

3. Before administering corporal punishment, the administrator must explain the nature of the offense to the student in the presence of the witness.

4. No unusual or cruel punishment may be administered. Striking any part of the student's head is strictly forbidden. Neither teacher nor principal may authorize students to inflict corporal punishment, even under the guise of a game.

5. All cases of corporal punishment will be recorded in writing with a copy mailed to the parent(s) or legal guardian and to the superintendent. The report must include the name of the witness.

6. Parents or guardians shall be contacted as soon as possible after the corporal punishment has been administered.

7. Corporal punishment shall not violate the law: A person having care or custody of child may not willfully cause or permit the child to suffer, inflict unjustifiable physical pain and mental suffering, cause or permit life or limb to be in danger, or place the child in a situation that causes danger to life or limb.

CORPORAL PUNISHMENT CONSENT FORM

1. I authorize and give my consent for _____ Public Schools officials to administer corporal punishment (paddle) to _____ (*name of student*) as outlined in board policy. This consent is valid for the _____ school year.

2. I do not consent to the administration of corporal punishment to _____ _____ (*name of student*). This consent is valid for the _____ school year.

_____
Parent or Guardian

Date: _____